



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35543399

Date: JAN. 21, 2025

Appeal of Chicago, Illinois Field Office Decision

Form I-601, Application for Waiver of Grounds of Inadmissibility

The Applicant, a native and citizen of Mexico, currently residing in the United States, has applied to adjust status to that of a lawful permanent resident (LPR). A noncitizen seeking to be admitted to the United States as an immigrant or to adjust status must be “admissible” or receive a waiver of inadmissibility. The Applicant has been found inadmissible for fraud or misrepresentation and seeks a waiver of that inadmissibility. *See* Immigration and Nationality Act (the Act) section 212(i), 8 U.S.C. § 1182(i). U.S. Citizenship and Immigration Services (USCIS) may grant this discretionary waiver if refusal of admission would result in extreme hardship to a qualifying relative or qualifying relatives.

The Director of the Chicago, Illinois Field Office denied the Form I-601, Application for Waiver of Grounds of Inadmissibility (waiver application), concluding that the Applicant did not establish that her LPR parents would experience extreme hardship upon her removal or their relocation to Mexico. The matter is now before us on appeal. 8 C.F.R. § 103.3.

The Applicant bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo’s, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

The Applicant’s father filed a Form I-130, Petition for Alien Relative (visa petition) on her behalf in 1994. USCIS initially approved the petition in 1995, but Department of State (DOS) later terminated the visa after a lack of response when the visa became available. The Applicant applied to adjust status under section 245(i) of the Act based on this visa.¹ The Director issued a request for additional evidence (RFE) seeking a waiver application after determining the Applicant was inadmissible because of misrepresentation. After reviewing the entirety of the record, the Director denied the adjustment of status and waiver applications.

A waiver application serves the purpose of removing the inadmissibility bar to adjustment of status or issuance of an immigrant visa, *See* 8 C.F.R. § 212.7(a)(1). To be eligible to receive a waiver, the applicant must first be “an applicant for an immigrant, K, or V nonimmigrant visa [. . .], or . . . an applicant for adjustment of status to lawful permanent residence,” excluding certain identified

¹ Records do not indicate that a new Form I-130 has been filed or approved on the Applicant’s behalf.

categories. *See* Form I-601 Instructions for Application of Waiver of Grounds of Inadmissibility,² <https://www.uscis.gov/sites/default/files/document/forms/i-601instr.pdf>. In this case, absent an approved visa petition, the Applicant has not established she is within any of these categories. Thus, she is not eligible to apply for a waiver. Because the Applicant has not established eligibility for the waiver application, we will not reach the merits of the Applicant's waiver or consider whether it should be granted as a matter of discretion. The waiver application will remain denied.

ORDER: The appeal is dismissed.

² Form instructions carry the weight of binding regulations. *See* 8 C.F.R. § 103.2(a)(1) ("Every form, benefit request, or document must be submitted . . . and executed in accordance with the form instructions. . . . The form's instructions are hereby incorporated into the regulations requiring its submission.").